

**Tentative Rulings and Resolution Review Hearings
August 4, 2025
Department 64**

THIS CALENDAR WILL BE CALLED IN DEPARTMENT 54

Those appearing by CourtCall should use the dial in for Department 64.

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CAPITAL ONE, N.A. VS. GRAVES

Case Number: 24CVG-01354

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 27, 2025 to Plaintiffs and counsel for failure to timely serve pleadings on defendant as required by CRC 3.110. No response to the OSC has been filed. Plaintiff has taken no action on this matter since January 13, 2025, when their Request to Enter Default was denied due to a lack of proof of service on file. It appears Plaintiff has abandoned the matter. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's 9:00 a.m. review hearing.

DEAN VS. CITY OF REDDING, ET AL.

Case Number: 25CV-0207096

Tentative Ruling on Motion for Reconsideration: Plaintiff Linda Dean moves for reconsideration of the Court's June 16, 2025 Order denying Plaintiff's Petition for Relief from the claims presentation requirements of the Government Claims Act, Gov. Code section 945.4. The matter was decided by visiting Judge Earl Nelson. Judge Nelson will be in Shasta County again on August 8, 2025. Hearing on this motion is being continued to **Friday, August 8, 2025 at 3:00 p.m. in Department 24**. Due to the closure of the second floor of the courthouse, Department 24 is currently being called in Department 44 and any in person appearance should be in Department 44. CourtCall is permitted without prior authorization from the Court and the parties should still utilize the CourtCall dial in for Department 64. A tentative ruling will be posted under Department 64 at least 12 hours in advance of the hearing per Local Rule of Court 5.17(C). **No appearance is necessary on today's calendar.**

IN RE: EDWARDS

Case Number: 25CV-0207806

Tentative Ruling on Petition for Change of Name: Petitioner Miranda Lynn Edwards seeks to change her name to Miranda Lynn Edwards Favorite. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Summary Adjudication: This is a lemon law action filed March 17, 2023. The operative complaint is the First Amended Complaint, filed February 19, 2025. Causes of Action 1-4 fall under the Song-Beverly Act, Cause of Action 5 is for Fraudulent Inducement-Concealment, and Cause of Action 6 is for Violation of the Magnuson-Moss Warranty Act. Defendant seeks summary adjudication of Causes of Action 1-5, only. Plaintiffs oppose the Motion.

Merits of Motion: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

First-Fourth Causes of Action: Plaintiff’s First through Fourth Causes of Action allege violation of California’s Song-Beverly Consumer Warranty Act (“the Act”). California Civil Code §§ 1790 *et seq.* Defendant seeks summary adjudication on these four causes of action on the grounds that Plaintiffs are barred from asserting causes of action under the Act, because the Subject Vehicle, a 2020 Honda Pilot, was purchased from a dealership located in Oregon. Plaintiffs argue that the Act applies, because the vehicle was purchased by Plaintiffs in California.

In *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, the California Supreme Court held that the Act does not apply unless the vehicle was purchased in California. Here, Defendant’s separate